



INDIAN POLITY

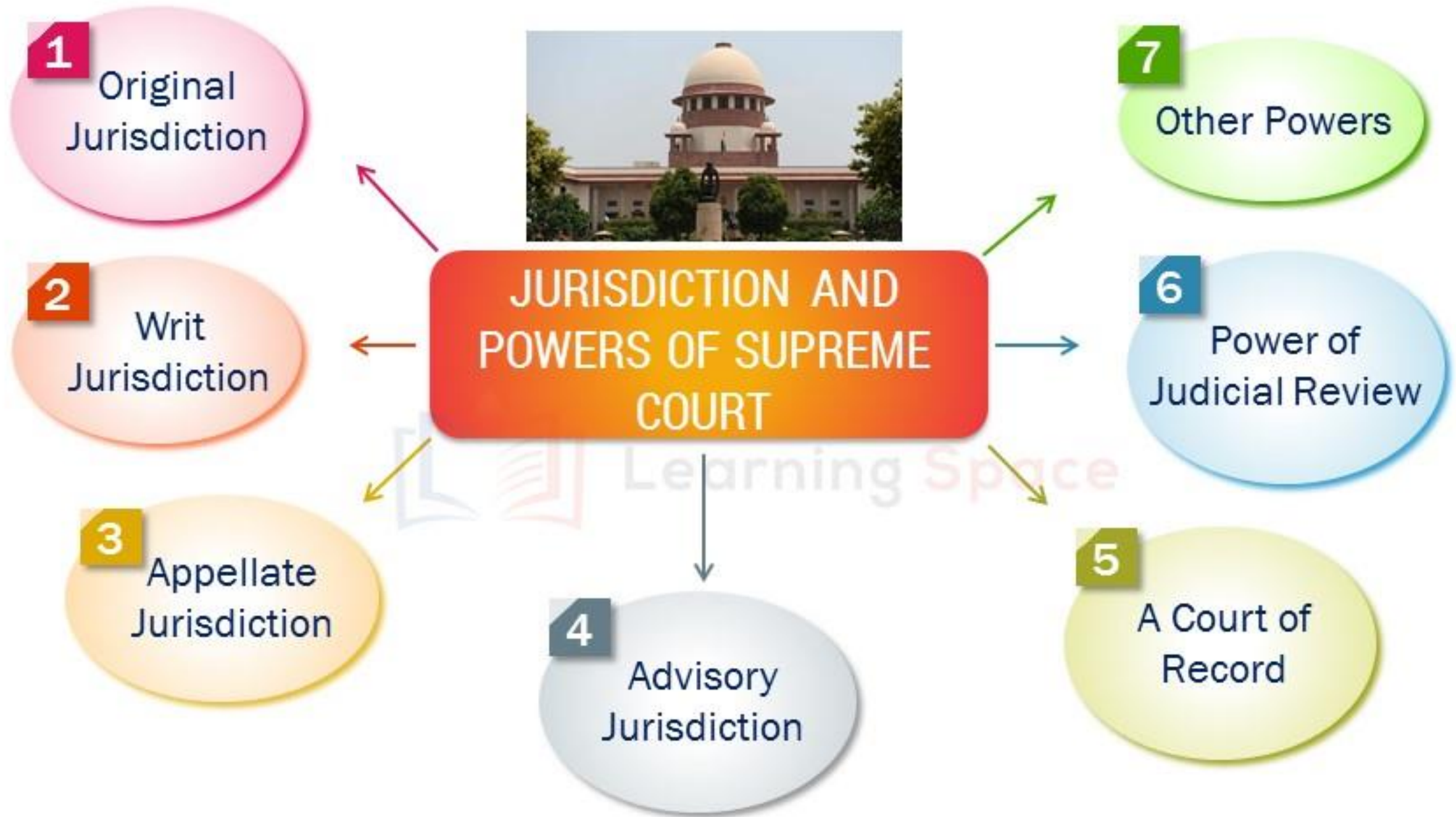


FRE
CA
S

SUPREME COURT (PART 2)



MODULE – 75



SUPREME COURT



The dispute must involve a question (whether of law or fact) on which the existence or extent of a legal right depends.

POINTS TO BE NOTED

Suit brought before the Supreme Court by a private citizen against the Centre or a state cannot be entertained under this

ORIGINAL JURISDICTION

DOES NOT
EXTEND

EXCLUSIVE ORIGINAL JURISDICTION

1. Centre & one or more states
2. Centre and any state(s) on one side & one or more states on the other
3. Between 2 or more states

A dispute arising out of any pre-Constitution treaty.

A dispute arising out of any treaty, agreement, etc., which specifically provides that the said jurisdiction does not extend to such a dispute.

Inter-state water disputes.

Matters referred to the Finance Commission

Adjustment of certain expenses and pensions between the Centre and the states

Ordinary dispute of Commercial nature between the Centre and the states.

Recovery of damages by a state against the Centre.

WRIT JURISDICTION

Writs

Indian Law



Empowered to issue writs including habeas corpus, mandamus, prohibition, quo-warranto and certiorari for the enforcement of the fundamental rights.

Not an exclusive power.

The power here is concurrent with the high courts jurisdiction.

Federal disputes - original jurisdiction

FR disputes - concurrent powers with HC

SC can issue writs only for the enforcement of the Fundamental Rights and not for other purposes.

HC for other legal purposes also.

It means that the writ jurisdiction of the high court is wider than that of the Supreme Court.

But, the Parliament can confer on the Supreme Court, the power to issue writs for other purposes also.

CONSTITUTIONAL MATTERS: Appeals lie against the judgement of a high court if the high court certifies that the case involves a substantial question of law that requires the interpretation of the Constitution.

CRIMINAL MATTERS: Appeal lies if the high court –

1. Has on appeal, reversed an order of acquittal of an accused person and sentenced him to imprisonment for life or for ten years; or
2. Has taken before itself any case from any subordinate court and convicted the accused person and sentenced him to imprisonment for life or for ten years
3. Certifies /that the case is a fit one for appeal to the Supreme Court.

APPELLATE JURISDICTION

CIVIL MATTERS: Appeal lies if the high court certifies—

1. That the case involves a substantial question of law of general importance; and
2. That the question needs to be decided by the Supreme Court.

APPEAL BY SPEACIAL LEAVE: SC can grant appeal from any judgement in any matter passed by any court or tribunal in the country –

- It is a discretionary power and hence, cannot be claimed as a matter of right.
- It can be granted in any judgement whether final or interlocutory.
- It may be related to any matter.
- It can be granted against any court or tribunal (except a military court).

SUPREME COURT

ADVISORY JURISDICTION

On any question of law or fact of public importance which has arisen or which is likely to arise.

The Supreme Court may tender or may refuse to tender its opinion to the president

On any dispute arising out of any pre-constitution treaty, agreement, covenant, engagement, or other similar instruments

The Supreme Court 'must' tender its opinion to the president.

In both the cases, the opinion expressed by the Supreme Court is only advisory and not a judicial pronouncement. Hence, it is not binding on the president.

SUPREME COURT

CONTEMPT OF COURT

A COURT OF RECORD

The judgements, proceedings and acts of the Supreme Court are recorded for perpetual memory and testimony. These records are admitted to be of evidentiary value and cannot be questioned when produced before any court.

It has power to punish for contempt of court



Civil contempt means wilful disobedience to any judgement, order, writ or other process of a court or wilful breach of an undertaking given to a court.

Criminal contempt means the publication of any matter or doing an act which—

- Scandalises or lowers the authority of a court; or
- Prejudices or interferes with the due course of a judicial proceeding; or
- Interferes or obstructs the administration of justice in any other manner.

However, innocent publication and distribution of some matter, fair and accurate report of judicial proceedings, fair and reasonable criticism of judicial acts and comment on the administrative side of the judiciary do not amount to contempt of court.

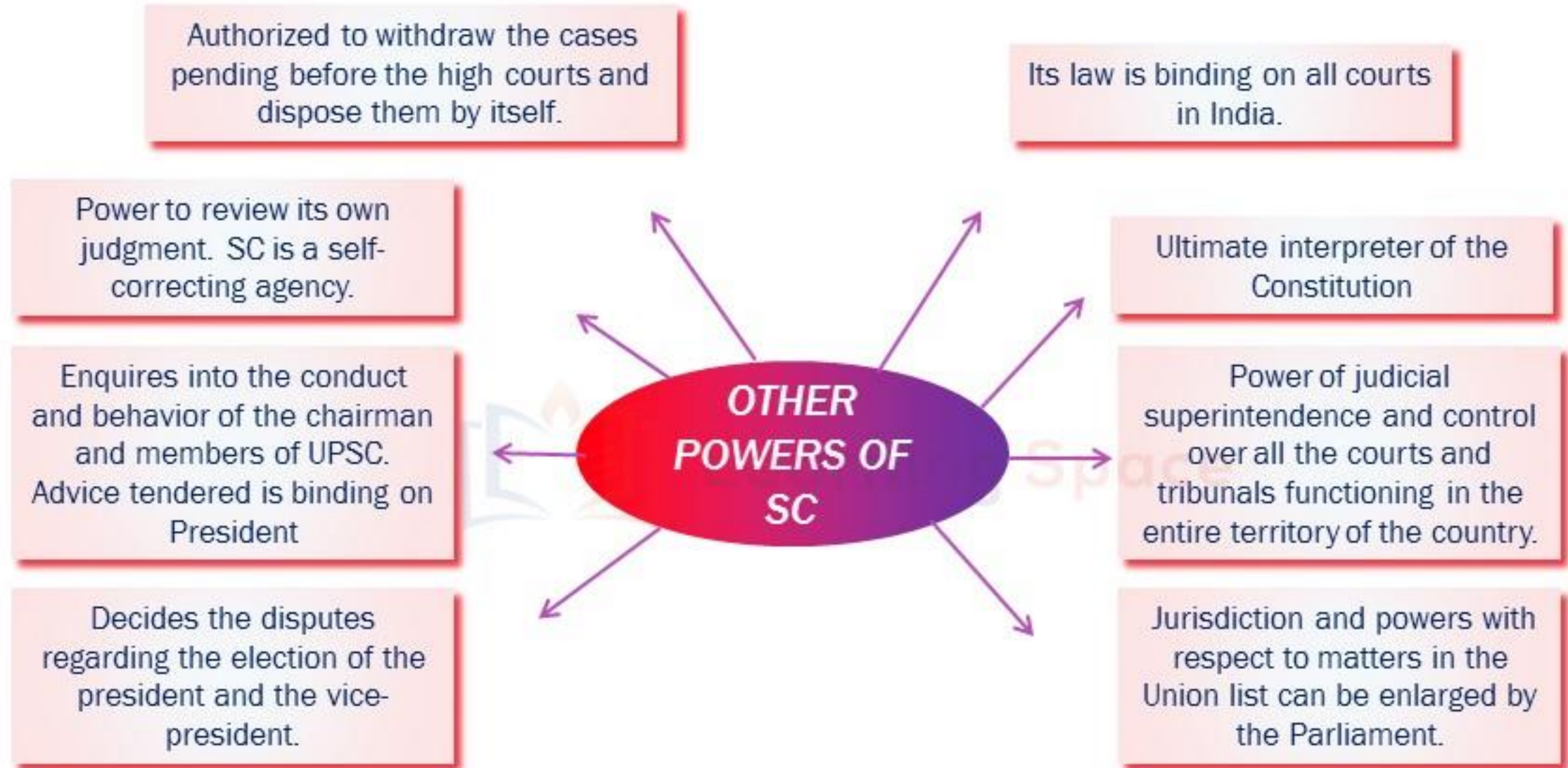
SUPREME COURT

POWER OF JUDICIAL REVIEW



Judicial review is the power of the Supreme Court to examine the constitutionality of legislative enactments and executive orders of both the Central and state governments.

On examination, if they are found to be violative of the Constitution (ultra-vires), they can be declared as illegal, unconstitutional and invalid (null and void) by the Supreme Court.



ISSUES PLAGUING HIGHER JUDICIARY

ISSUE : 1

CJI AS THE “MASTER OF THE ROSTER”



1 The former CJI was criticised by many for the manner in which cases were allocated to judges under his watch.

2 He was also criticised for selectively choosing the benches that would hear cases of public importance.

3 In some countries like UK, Canada and Australia, the selection of benches is a consultative process, which involves a culture of trust.

4 However, there are clear and defined rules in this regard in the European Court of Human Rights and the European Court of Justice.

5 The trend of CJI assuming the role of “master of the roster” with unbridled and unrestricted power, continues even under the present CJI. Hence, certain urgent reforms are required in this context.

ISSUE : 2

PROCESS OF APPOINTMENTS AND TRANSFERS



- 1 There was a proposal to transfer a sitting judge in Delhi High Court recently.
- 2 There is also a reversal of a decision of the previous collegium to elevate two High Court chief justices to the SC.
- 3 There were news reports that “adverse material” surfaced against these two judges.
- 4 The norm is, such material should be put up to these judges in a formal setting and they would be given opportunity to defend themselves.
- 5 They were bypassed, and relatively junior judges were pushed up.

ISSUE : 2

PROCESS OF APPOINTMENTS AND TRANSFERS



- 6 Such last-minute reversals can damage the morale of the judiciary.
- 7 The Government is not consistent in its stand. In earlier occasion, it defended the seniority convention. This time, it was silent.
- 8 There are several reservations expressed on the collegium working by legal luminaries.

ISSUES PLAGUING HIGHER JUDICIARY

ISSUE : 3

SEALED COVER SYNDROME



1 There is fascination for the Supreme Court for the “sealed cover” as a means of receiving information about the cases.

2 This is completely against the idea of open, transparent justice.

3 Our judiciary is not only opaque, but is also becoming a party to opacity in its public function, as an **arbiter of public disputes**.

4 Such secretive information should be resorted to only in **exceptional cases**.

5 In the National Register of Citizens case, where the lives of lakhs of people hinge on the sealed covers, it is not acceptable.

APPOINTMENT after RETIREMENT

- 1 Such appointments compromise the independence of the judiciary.
- 2 They raise potential conflicts of interest.
- 3 Even the Minister Arun Jaitley once remarked that the pre-retirement judgments were influenced by post-retirement assignments.

ISSUES PLAGUING HIGHER JUDICIARY

ISSUE : 4

POST RETIREMENT APPOINTMENTS

LET US LOOK AT THE CASE OF JUSTICE CHAGLA!



JUSTICE M.C. CHAGLA

1 Justice Chagla was the member of the First Law Commission.

2 Speaking as member, he categorically denounced the proclivity of judges accepting post-retirement jobs sponsored by Governments and called for an end to it.

3 But, he accepted government appointment to serve as Indian Ambassador to U.S. (1958-61), Indian High Commissioner to U.K (1962-1963).

4 Soon after he was asked to be Minister for education in Nehru's Cabinet, and again he accepted and he was in the Ministry till 1967 in various capacities.

ISSUES PLAGUING HIGHER JUDICIARY

ISSUE : 4

POST RETIREMENT APPOINTMENTS

VIEW

- 1 Tribunals should not be haven for retired persons.
- 2 Appointment should not result in decisions being influenced, if the **Government itself is a litigant and appointment authority at the same time.**

COUNTERVIEW

- 1 Valuable experience and insights that competent and honest judges acquire cannot be wasted after retirement.
- 2 In India, judge of the higher judiciary retires at a comparatively young age, he is capable of many more years of productive work.

But, Government sponsored post-retirement appointments will continue to raise a cloud of suspicion over the judgments the best judges delivered while in service.

WHAT SHOULD BE THE VIABLE OPTION?



- 1 The viable option is to establish through a **properly enacted statute**, a commission made up of a majority of retired judges to make appointments of competent retired judges to tribunals and judicial bodies.

- 2 This void requires immediate intervention.
- 3 Supreme Court can provide interim solution till the legislation is passed.
- 4 In the Vishaka case, Supreme Court laid down guidelines to deal with sexual harassment till a law is passed by Parliament.
- 5 So now it is time for the Supreme Court to invoke the **methodology to regulate post-retirement appointments** for judges.

Such a process must sufficiently insulate the judiciary from the charge of being a recipient of government largesse.

ISSUES PLAGUING HIGHER JUDICIARY

ISSUE : 5 EXTREME DECISIONS OF SUPREME COURT

LOOK AT THE FOLLOWING DECISIONS BY HIGHER JUDICIARY!

1

One Judge gave a decision to play national anthem in all the cinema halls of the Nation.



2

One Judge mandated that every student in Tamil Nadu must study Tirukkural.



3

Entire process of preparing NRC is being monitored by Supreme Court.



ISSUE : 5

EXTREME DECISIONS OF SUPREME COURT

SEE THE LATEST INSTANCES, WHERE THE SUPREME COURT LEGISLATED!

ARJUN GOPAL VS UoI, 2017

The Supreme Court fixed timings for bursting Diwali fireworks and prohibited the use of non-green fireworks in NCR. However, there are no laws to that effect.



M.C.MEHTA VS UNION OF INDIA, 2018

The Court annulled the statutory Rule 115 (21) of the Central Motor Vehicle Rules, 1989, when it directed that no BS-IV vehicle should be sold after March 31, 2020 and only BS-VI vehicles should be sold after that date.



ISSUES PLAGUING HIGHER JUDICIARY

ISSUE : 5 EXTREME DECISIONS OF SUPREME COURT

OBSERVATIONS OF JUSTICE S.R.SEN OF MEGHALAYA HIGH COURT-AN EXTREME CASE!



S.R.SEN



1

“Anybody opposing Indian laws and the Constitution cannot be considered citizens of the Country”.

2

“In 1947 India should have been declared a Hindu country”.

3

“Pakistan declared themselves as Islamic country and India, since it was divided on the basis of religion, should have been also declared as a Hindu country, but, it remained as a secular country”.

All this indicates the Judiciary is making a transition from being a conservative institution to a legislative body!

INDEPENDENCE OF JUDICIARY

5

Judges are accountable to themselves and to their own sense of the limits of their constitutional role.

1

Judges should perform their constitutional role, independent of personal biases, political and moral beliefs and partisan ideologies.

4

Independence from Government is one aspect and accountability is another aspect

2

He or She is bound to maintain primary fidelity to the law and the Constitution, to the text of legal instruments, to the canons of legal interpretation.

3

Law and adjudication must remain autonomous from partisan politics.

WHAT IS THE
REAL
MEANING?



LEGAL CULTURE MAKES ALL THE DIFFERENCE FOR ACCOUNTABILITY!



- 1 It is the Legal Culture, which plays a critical role in establishing judicial accountability.
- 2 It is a set of unwritten, but clearly established, norms that determines what is acceptable/what is not acceptable in the process of adjudication.
- 3 The Legal Culture must be created and nurtured by judges, lawyers, legal academics, press and citizens etc.

The need of the hour is that there should be a balance between Judicial Activism and Judicial Restraint to maintain this Legal Culture!

WE EXPRESS OUR
SINCERE THANKS
FOR VIEWING THIS VIDEO

Presented by



Learning Space

For Suggestions:

suggestions@learningspace.in

To Contact us:

info@learningspace.in

OUR TEAM

G. V. Rao

K. Srikanth

D. Sunil Kumar

L. V. Krishna

Y. Deepthi

Amrita Naidu

M. Binukrishna

G. Ravi Babu

D. Joji

K. Victor Babu

Visit us at:

www.learningspacedigital.com

0 8 6 6 -2 4 4 4 4 7 2

0 9 8 4 9 9 4 2 2 9 9